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ACCURATE BACKGROUND, LLC

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC, a California liability company; and DOES 1-10, inclusive,

Defendants.

Case No. 4:26-cv-09249-ASK

Hon. Ajay S. Krishnan

DEFENDANT ACCURATE BACKGROUND, LLC'S ANSWER AND AFFIRMATIVE AND OTHER DEFENSES TO PLAINTIFF'S COMPLAINT

Defendant ACCURATE BACKGROUND, LLC, by its attorneys and pursuant to Rules 8 and 12 of the Federal Rules of Civil Procedure, hereby answers Plaintiff's Complaint and asserts its affirmative and other defenses as follows:

PARTIES

COMPLAINT ¶1:

Plaintiff BRENDAN NGEHSI NEWANFORBI ("Plaintiff") is, and at all times relevant herein was, an individual residing in the County of San Joaquin, State of California.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of Plaintiff's current residence. Accurate denies any remaining allegations in Paragraph 1 of the Complaint.

COMPLAINT ¶2:

Defendant AMAZON.COM SERVICES, LLC ("Amazon") is, and at all times relevant herein was, a Delaware limited liability company authorized to do business in the State of California. Amazon operates a fulfillment center located at 44051 Osgood Road, Fremont, California 94539, in the County of Alameda. Amazon extended to Plaintiff a conditional offer of employment for a Seasonal XL Warehouse Associate position at that facility and is the entity that procured a consumer report on Plaintiff for employment purposes.

ANSWER:

Accurate admits that Amazon requested a consumer report regarding Plaintiff. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 2 of the Complaint.

COMPLAINT ¶3:

Defendant ACCURATE BACKGROUND LLC ("Accurate Background") is, and at all times relevant herein was, a California limited liability company headquartered in Irvine, California. Accurate Background is a consumer reporting agency within the meaning of the Fair Credit Reporting Act, 15 U.S.C. section 1681a(f), and the Investigative Consumer Reporting Agencies Act, Civil Code section 1786.2(d). Accurate Background was retained by Amazon --referred to by Accurate Background itself

as "Amazon Salesforce" -- to conduct background screening on applicants for employment, including Plaintiff. In its own communications to Plaintiff, Accurate Background identified itself as "a consumer reporting agency" that was "requesting background check on behalf of Amazon." Accurate Background communicates with applicants via SMS shortcode 45996 and by email from the addresses noreply@accurate.com and infoneeded@accurate.com.

ANSWER:

Accurate admits that it provides certain services as a "consumer reporting agency" as that term is defined by the FCRA and ICRAA, and as limited to those activities only. Accurate also admits that it is headquartered in Irvine, California, and that Amazon requested a background report regarding Plaintiff. In further response, Accurate states that the referenced communications are the best evidence of their contents and denies those allegations in Paragraph 3 of the Complaint that are inconsistent with the referenced communications. Accurate denies the remaining allegations in Paragraph 3 of the Complaint.

COMPLAINT ¶4:

The true names and capacities, whether individual, corporate, associate, or otherwise, of DOES 1 through 10, inclusive, are unknown to Plaintiff at this time. Plaintiff will amend this Complaint to allege their true names and capacities when ascertained. Each DOE Defendant is responsible in some manner for the acts, omissions, and damages alleged herein.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 4 of the Complaint.

JURISDICTION AND VENUE

COMPLAINT ¶5:

This Court has jurisdiction over this action pursuant to Article VI, Section 10 of the California Constitution and Code of Civil Procedure section 410.10. The amount in controversy exceeds the jurisdictional minimum of this Court. This action is classified as an unlimited civil case.

ANSWER:

Accurate admits only that this case was properly removed to this Court and that jurisdiction is proper in this Court. Accurate denies the remaining allegations in Paragraph 5 of the Complaint, and specifically denies that Plaintiff is entitled to any relief whatsoever.

COMPLAINT ¶6:

Venue is proper in this Court pursuant to Code of Civil Procedure sections 395(a) and 395.5 because the employment opportunity at issue existed at Amazon's fulfillment center located at 44051 Osgood Road, Fremont, California, in the County of Alameda, and because a substantial part of the events and omissions giving rise to this action occurred in the County of Alameda, including the pre-hire appointment, the processing of the background check, and the loss of the specific employment position.

ANSWER:

Accurate admits only that this case was properly removed to this Court and that venue is proper in this Court. Accurate denies the remaining allegations in Paragraph 6 of the Complaint, and specifically denies that it violated the FCRA or any other law.

FACTUAL ALLEGATIONS

COMPLAINT ¶7:

Plaintiff applied through Amazon's hiring portal at hiring.amazon.com for a position as a Seasonal XL Warehouse Associate at Amazon's fulfillment center located at 44051 Osgood Road, Fremont, California 94539 (Alameda County). The offered terms included a pay rate of $21.50 per hour (the offer letter later stated a range of $21.50 to $24.00 per hour), approximately 19 hours per week, on a seasonal basis, with a possible start date of July 28, 2026.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 7 of the Complaint.

COMPLAINT ¶8:

On July 3, 2026, at 2:09 PM, Amazon emailed Plaintiff a conditional offer of employment, with the subject line "Congratulations on Your Amazon Offer!" The email stated, in pertinent part: "This

offer is confirmation that you will be hired* as an employee of Amazon and depends on the successful completion of your background check, drug test, and all pre-hire activities."

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 8 of the Complaint.

COMPLAINT ¶9:

The same offer email further stated: "We will require you to select a new start date, location or schedule, which could potentially impact your pay details if: Your pre-employment requirements are not completed on time. There is missing or incomplete information on your background check. There are no longer any training spots available for your first day. But don't worry if this happens! We will reach out to you via email with any information requests or notify you of any changes."

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 9 of the Complaint.

COMPLAINT ¶10:

The conditional offer fixed training dates of July 28-29 and August 4-5, 2026, at Amazon's Fremont fulfillment center.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 10 of the Complaint.

COMPLAINT ¶11:

On July 3, 2026, at 2:20 PM, Amazon confirmed Plaintiffs Pre-Hire Appointment for July 7, 2026, at 9:00 AM, at the Fremont facility. Confirmation was sent by both email and SMS (shortcode 39816).

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 11 of the Complaint.

COMPLAINT ¶12:

On July 4, 2026, Equifax sent Plaintiff an onboarding-packet reminder relating to onboarding paperwork, separate from the background check. That evening, Plaintiff completed Form I-9 online. The system audit log records the session at 2026-07-05T03:07 through 03:12 UTC. Plaintiffs Section 1 attestation stated: "An alien authorized to work," with a USCIS/A-Number on file and an employment authorization expiration date of May 12, 2027.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 12 of the Complaint.

COMPLAINT ¶13:

On July 6, 2026, at 9:37 AM, Amazon sent Plaintiff an SMS (shortcode 31432) explaining a four-day paid training requirement. At 10:22 AM, Amazon Workforce Staffing sent Plaintiff an application-experience survey email. At 2:53 PM, Amazon sent a second pre-hire appointment reminder.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 13 of the Complaint.

COMPLAINT ¶14:

On July 7, 2026, Plaintiff attended the Pre-Hire Appointment at the Fremont facility from approximately 9:00 AM to 9:30 AM. At 9:20 AM, Amazon emailed Plaintiff a "Completed Pre-Hire Appointment" confirmation. Amazon's Simple Hire checklist at that time showed: Drug Test -- COMPLETE; I-9 Verification -- COMPLETE; Background Check -- PENDING.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 14 of the Complaint.

COMPLAINT ¶15:

On July 7, 2026, at approximately 9:22 AM -- within moments of the completion of Plaintiffs Pre-Hire Appointment -- three things occurred in the same narrow time window:

a. Accurate Background sent Plaintiff an SMS from shortcode 45996 stating:

"Reply START to receive text messages from Accurate Background (requesting background check on behalf of Amazon)."

b. Accurate Background emailed Plaintiff a "Notification of Electronic Communication," which stated: "The purpose of this notice is to inform you that in connection with your screening request by the company listed below, Accurate Background, a consumer reporting agency, was asked to complete screening(s) about you." The email identified the requesting company as "Amazon Salesforce" at "PO BOX 81226, Seattle, WA 98108."

c. In a separate email sent at the same time (subject: "Other Information Needed for Screening Request - ID# 496623722"), Accurate Background stated: "Accurate Background is in the process of conducting your screening. To proceed, please contact us by phone and kindly confirm/provide the following: Social security number, Provided name(s), Address history, Date of birth. Please treat this as an urgent matter... Failure to respond in a timely manner will result in delays in processing your screening."

ANSWER:

Accurate states that the referenced communications are the best evidence of their contents and denies those allegations in Paragraph 15 of the Complaint that are inconsistent with the referenced communications. Accurate denies the remaining allegations in Paragraph 15 of the Complaint.

COMPLAINT ¶16:

The communications described in Paragraph 15 establish by Accurate Background's own words that: (a) Accurate Background is a "consumer reporting agency"; (b) Accurate Background was acting on behalf of Amazon (which it internally designates "Amazon Salesforce"); and (c) Accurate Background was preparing a consumer report on Plaintiff for employment purposes. These are not conclusory allegations on information and belief; they are Accurate Background's own self-identification in its own contemporaneous communications to Plaintiff.

ANSWER:

Accurate states that the referenced communications in Paragraphs 15 and 16 of the Complaint are the best evidence of their contents and denies any allegations in Paragraph 15 or 16 of the Complaint that are inconsistent with the referenced communications. Accurate denies the remaining allegations in Paragraph 16 of the Complaint.

COMPLAINT ¶17:

On July 8, 2026, Amazon sent Plaintiff an SMS (shortcode 31432) stating: "Just an update on your background check. At the site you applied to, background checks are usually returned 5 days after they are submitted."

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 17 of the Complaint.

COMPLAINT ¶18:

On July 12, 2026, at 5:00 AM, Amazon emailed Plaintiff: "Your application with Amazon is still in progress. The time to complete the background check and testing can vary, so we thank you for your patience."

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 18 of the Complaint.

COMPLAINT ¶19:

On July 17, 2026, at 5:15 AM, Amazon emailed Plaintiff: "We are still waiting for your background check results and sincerely apologize for the delay. These background checks are processed through a third-party vendor, so we will notify you via email as soon as your results are provided to us."

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 19 of the Complaint.

COMPLAINT ¶20:

At 7:54 AM on July 17, 2026 -- ten days after Accurate Background's initial July 7 consent request -- Plaintiff replied "START" to Accurate Background's SMS, consenting to text message communications. Plaintiffs response was not contemporaneous with the initial request.

ANSWER:

Accurate states that the communications referenced in Paragraph 20 of the Complaint are the best evidence of their contents and denies those allegations in Paragraph 20 of the Complaint that are inconsistent with the referenced communications. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 20 of the Complaint.

COMPLAINT ¶21:

On July 27, 2026, at 3:23 PM, Plaintiff accessed Amazon's Simple Hire checklist. The checklist showed that the background check was still "Pending" -- twenty days after submission, approximately four times Amazon's own stated five-day norm, with only one of six onboarding activities marked complete.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 21 of the Complaint.

COMPLAINT ¶22:

The same July 27 checklist no longer showed Plaintiffs confirmed training shift. Instead, it read: "You do not have a shift selected. Please select a new shift." This was captured one day before the July 28 training and start date that Amazon's own July 3 conditional offer had fixed. The specific, dated employment position that Amazon had offered to Plaintiff had been silently vacated.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 22 of the Complaint.

COMPLAINT ¶23:

As of the date of this Complaint, no formal adverse-action notice of any kind has issued. No pre-adverse-action notice under the Fair Credit Reporting Act or the Investigative Consumer Reporting Agencies Act has been provided to Plaintiff. No copy of the consumer report has been furnished. No opportunity to dispute or explain the contents of the report has been afforded. The background check remains in a perpetual "Pending" status while the offered employment has been effectively withdrawn.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the first two sentences of Paragraph 23 of the Complaint. Accurate admits that Plaintiff's consumer report is pending. Accurate denies the remaining allegations in Paragraph 23 of the Complaint, and specifically denies violating the FCRA or any other law.

COMPLAINT ¶24:

The July 3 offer email's own language -- quoted in Paragraph 9, above -- expressly contemplated this precise outcome. It stated that Plaintiff would be required to "select a new start date, location or schedule" if, among other things, the pre-employment requirements were "not completed on time" or there were "no longer any training spots available for your first day." Amazon framed this potential loss as a routine scheduling matter ("But don't worry if this happens!") rather than as a denial, rejection, or adverse action requiring formal notice. The mechanism described in the offer email is exactly the mechanism that then operated: the background check was not completed on time, and the confirmed training shift was vacated, one day before the start date.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 24 of the Complaint relating to the referenced communications. Accurate denies the remaining allegations in Paragraph 24 of the Complaint and denies violating the FCRA or any other law.

COMPLAINT ¶25:

The practical effect of these events is that Plaintiff has lost the specific employment position for which he received a conditional offer. An adverse action has occurred in substance -- the specific job has been lost -- whether or not Amazon characterizes it as a formal denial and whether or not Amazon issues a formal adverse-action notice.

ANSWER:

Accurate denies the allegations in Paragraph 25 of the Complaint, and specifically denies that it violated the FCRA or any other law.

COMPLAINT ¶26:

Plaintiff is a registrant on California's Sex Offender Registry pursuant to Penal Code section 290.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 26 of the Complaint.

COMPLAINT ¶27:

California Penal Code section 290.46, subdivision (j)(2), provides, in pertinent part, that information disclosed on the Department of Justice's Internet Web site regarding a person required to register as a sex offender "shall not be used" to, among other things, "[d]eny . . . employment" (subd. (j)(2)(E)). This prohibition applies to "[a]ny person" who uses such information for the enumerated prohibited purposes, including employers and their agents.

ANSWER:

Accurate states that the cited authority is the best evidence of its contents and denies any allegations in Paragraph 27 that are inconsistent with the cited authority. Accurate denies the remaining allegations in Paragraph 27 of the Complaint.

COMPLAINT ¶28:

On information and belief, and in the alternative, the extended delay in processing Plaintiffs background check, the contemporaneous out-of-band identity-reverification demand from Accurate Background, and the ultimate constructive denial of employment are attributable in whole or in part to Plaintiffs status as a registrant on California's Sex Offender Registry, as identified through one or more of the following means: (a) Accurate Background's own "Sex Offender Registry Search" product, which Accurate Background advertises and offers as a standard component of its criminal background screening services; (b) a "National Sex Offender Database Search," which aggregates data from state sex-offender registries including the California Megan's Law website operated by the Department of Justice; (c) direct reference to the California Megan's Law website at meganslaw.ca.gov; or (d) some

combination of these or other means by which registry-derived information entered Accurate Background's screening process and was communicated to Amazon.

ANSWER:

Accurate denies the allegations in Paragraph 28 of the Complaint.

COMPLAINT ¶29:

Plaintiff does not, as of the date of this Complaint, possess Accurate Background's actual background-check report. Plaintiff has demanded but not yet received a copy of the consumer report prepared about him. Plaintiff therefore cannot identify with certainty the precise mechanism by which his registry status entered Accurate Background's screening process. Plaintiff expressly reserves the right to amend this Complaint to allege the specific mechanism once the actual report is obtained, whether through Plaintiffs rights under 15 U.S.C. section 1681g, Civil Code section 1786.10, or through formal discovery.

ANSWER:

Accurate denies that it has completed a consumer report regarding Plaintiff and denies that it has reported any information about him relating to his alleged status on any sex offender registry. Accurate denies all remaining allegations in Paragraph 29 of the Complaint.

COMPLAINT ¶30:

Regardless of the specific mechanism, the pattern is consistent with the experiences of other applicants screened by consumer reporting agencies in Plaintiffs portfolio of related matters. In three separate matters involving three independent consumer reporting agencies --Checkr, HireRight, and InfoMart -- the actual background-check reports obtained by Plaintiff showed the same result: all criminal-court record searches returned clear, and the sole flagged item was Plaintiffs status on the California Sex Offender Registry.

ANSWER:

Accurate denies the allegations in the first sentence of Paragraph 30 of the Complaint and denies that it has reported any information about him relating to his alleged status on any sex offender registry.

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 30 of the Complaint.

COMPLAINT ¶31:

Amazon and Accurate Background were both defendants in the prior action *Miguel Lerma, Jr. v. Amazon.com Services, LLC et al.*, No. 8:22-cv-01727-FWS-JDE (C.D. Cal.) ("*Lerma*"). *Lerma*, also a registrant on California's Sex Offender Registry, alleged that his conditional offer of employment with Amazon was revoked after Accurate Background ran a background check that surfaced a 2013 felony conviction.

ANSWER:

Accurate admits that it was named as a defendant in the referenced case. Accurate states that the referenced action is the best evidence of the allegations in that case and denies those allegations in Paragraph 31 of the Complaint that are inconsistent with the referenced action. Accurate denies the remaining allegations in Paragraph 31 of the Complaint.

COMPLAINT ¶32:

In *Lerma*, the complaint alleged that the disqualifying information was obtained from the California Megan's Law website. On May 26, 2023, the court granted both defendants' motions to dismiss the Megan's Law claim (Penal Code section 290.46) and a derivative Fair Credit Reporting Act claim, without prejudice. The court's reasoning was that Accurate Background's own background report -- properly before the court on judicial notice -- showed that the disqualifying conviction was identified through an ordinary Orange County criminal-court record search, not from the Megan's Law website. The report's own "National Sex Offender Database Search" line item returned "NO RECORD FOUND." The court held it need not accept the plaintiffs registry-sourcing theory where the report itself contradicted it.

ANSWER:

Accurate states that the referenced action and opinion are the best evidence of the allegations and outcome in that case and denies those allegations in Paragraph 32 of the Complaint that are inconsistent with the referenced action. Accurate denies the remaining allegations in Paragraph 32 of the Complaint.

COMPLAINT ¶33:

The *Lerma* plaintiffs separate Investigative Consumer Reporting Agencies Act claim against Accurate Background had been voluntarily dismissed after a seven-year-lookback defense was raised. The Lerma plaintiffs Unfair Competition Law claim failed for lack of federal equitable standing under *Sonner v. Premier Nutrition Corp.*, 971 F.3d 834 (9th Cir. 2020) -- a federal-court-specific doctrine inapplicable in this state-court action.

ANSWER:

Accurate states that the referenced action, pleadings, and authority are the best evidence of their contents and denies those allegations in Paragraph 33 of the Complaint that are inconsistent with the referenced action. In further response, Accurate states that this matter was properly removed to federal court. Accurate denies the remaining allegations in Paragraph 33 of the Complaint.

COMPLAINT ¶34:

The only cause of action in *Lerma* that survived either defendant's motion to dismiss was a California Fair Chance Act claim (Government Code section 12952) against Amazon alone. That claim was based on Amazon's failure to conduct an individualized assessment of the plaintiffs conviction history against the specific duties of the job before denying employment, despite having previously employed and praised him. Amazon answered that surviving claim on August 23, 2023. The case settled on September 21, 2023, and was terminated on September 29, 2023. Settlement terms were not publicly disclosed.

ANSWER:

Accurate states that the referenced action, pleadings, and outcome are the best evidence of their contents and denies those allegations in Paragraph 34 of the Complaint that are inconsistent with the

referenced action. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 34 of the Complaint.

COMPLAINT ¶35:

To be clear: Plaintiff does not allege that Amazon "settled the identical Megan's Law/registry claim" in *Lerma*. That would be false. The registry claim was dismissed, not settled. What Plaintiff does allege is the following: Amazon and Accurate Background have litigated this exact fact pattern before -- a registered sex offender receiving a conditional offer of employment, undergoing a background check conducted by Accurate Background, and having that offer effectively revoked. And in that litigation, Amazon specifically settled a Fair Chance Act claim premised on the absence of an individualized assessment. Amazon therefore had actual notice, no later than September 2023, that its hiring process was required to include an individualized assessment under Government Code section 12952 and that the absence of such an assessment was a cognizable legal violation for which it had already paid to resolve.

ANSWER:

Accurate states that the referenced action, pleadings, and outcome are the best evidence of their contents and denies those allegations in Paragraph 35 of the Complaint that are inconsistent with the referenced action. Accurate denies those remaining allegations in Paragraph 35 of the Complaint that pertain to Accurate. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 35 of the Complaint.

COMPLAINT ¶36:

Plaintiffs experience in 2026 demonstrates the same gap. Amazon's Simple Hire onboarding process, as experienced by Plaintiff, contains no individualized-assessment step of any kind. There is no point in the process at which Amazon evaluates the nature and gravity of an offense, the time elapsed since the offense and completion of sentence, or the relationship of the offense to the specific duties of the job, as required by Government Code section 12952(c)(1). The process moves directly from "Background Check -- Pending" to the silent removal of the confirmed training shift.

ANSWER:

Accurate denies those allegations in Paragraph 36 of the Complaint that pertain to Accurate. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 36 of the Complaint.

COMPLAINT ¶37:

As a direct and proximate result of the conduct described herein, Plaintiff has suffered and continues to suffer damages including, but not limited to: loss of the specific employment opportunity and its associated wages and benefits; lost earning capacity; emotional distress, humiliation, embarrassment, anxiety, and mental anguish arising from the protracted uncertainty, the indignity of having a confirmed employment position silently withdrawn, and the stigmatizing use of registry-derived information for employment purposes in violation of California law; and other consequential damages, in amounts to be proven at trial.

ANSWER:

Accurate denies the allegations in Paragraph 37 of the Complaint.

COMPLAINT ¶38:

Defendants' conduct was willful, knowing, and in reckless disregard of Plaintiffs rights. Amazon had actual notice of its obligations under the Fair Chance Act and the Penal Code section 290.46 prohibitions by virtue of the Lerma litigation, in which it was represented by counsel from Morgan, Lewis & Bockius LLP and in which these precise statutory obligations were briefed and adjudicated. Accurate Background had actual notice of its obligations as a consumer reporting agency under the FCRA and ICRAA, having been represented by counsel from Troutman Pepper Hamilton Sanders LLP in the same litigation. Despite this notice, Defendants engaged in the same pattern of conduct with respect to Plaintiff.

ANSWER:

Accurate denies the allegations in Paragraph 38 of the Complaint.

FIRST CAUSE OF ACTION
Penal Code Section 290.46, Subdivision (j)(2)(E)
(Against All Defendants)

COMPLAINT ¶39:

Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

ANSWER:

Accurate incorporates by reference its answers to Paragraphs 1 through 38 of the Complaint as its answer to Paragraph 39 of the Complaint.

COMPLAINT ¶40:

California Penal Code section 290.46 requires the Department of Justice to maintain an Internet Web site disclosing specified information about persons required to register as sex offenders under Penal Code section 290.

ANSWER:

Accurate states that the cited authority is the best evidence of its contents and denies those allegations in Paragraph 40 of the Complaint that are inconsistent with the cited authority. Accurate denies the remaining allegations in Paragraph 40 of the Complaint, and specifically denies violating the California Penal Code or any other law.

COMPLAINT ¶41:

Penal Code section 290.46, subdivision (j)(2), provides that the information disclosed on that website shall not be used by any person to commit a crime against any registrant or to engage in illegal discrimination or harassment against any registrant. Subdivision (j)(2)(E) expressly prohibits the use of such information to "[d]eny" any registrant "employment."

ANSWER:

Accurate states that the cited authority is the best evidence of its contents and denies those allegations in Paragraph 41 of the Complaint that are inconsistent with the cited authority. Accurate denies the remaining allegations in Paragraph 41 of the Complaint, and specifically denies violating the California Penal Code or any other law.

COMPLAINT ¶42:

Plaintiff is a registrant under Penal Code section 290 and is subject to information disclosure on the Department of Justice's Internet Web site maintained pursuant to section 290.46.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 42 of the Complaint. In further response, Accurate denies that it reported any information regarding Plaintiff's alleged status on any sex offender registry.

COMPLAINT ¶43:

On information and belief, and in the alternative as alleged in Paragraphs 28 and 29, Defendants, or one or more of them, used information disclosed on the Megan's Law website or derived from the Sex Offender Registry -- whether identified through Accurate Background's own Sex Offender Registry Search product, through the National Sex Offender Database (which aggregates state registry data including data from the California Megan's Law website), through direct reference to the Megan's Law website, or through some combination of these or other sources -- to deny Plaintiff employment by effectively revoking his conditional offer of employment through the mechanism described in Paragraphs 21 through 25.

ANSWER:

Accurate denies the allegations in Paragraph 43 of the Complaint, and specifically denies that it reported any information regarding Plaintiff's alleged status on any sex offender registry.

COMPLAINT ¶44:

Accurate Background acted as the agent of Amazon in conducting the background check, as established by Accurate Background's own contemporaneous communications quoted in Paragraph 15. Accurate Background's "Notification of Electronic Communication" identified itself as "a consumer reporting agency" that was asked to "complete screening(s)" on behalf of "Amazon Salesforce." Accurate Background's SMS consent request stated it was "requesting background check on behalf of Amazon." As Amazon's agent, Accurate Background is jointly liable for the use of registry-derived information to deny Plaintiff employment.

ANSWER:

Accurate denies the allegations in Paragraph 44 of the Complaint, and specifically denies that it reported any information regarding Plaintiff's alleged status on any sex offender registry.

COMPLAINT ¶45:

Plaintiff expressly reserves the right to amend these allegations to identify the specific source(s) through which registry-derived information entered Accurate Background's screening process once the actual background-check report is obtained through Plaintiffs statutory rights under 15 U.S.C. section 1681g, Civil Code section 1786.10, or through discovery.

ANSWER:

Accurate denies the allegations in Paragraph 45 of the Complaint.

COMPLAINT ¶46:

As a direct and proximate result of Defendants' violation of Penal Code section 290.46, subdivision (j)(2)(E), Plaintiff has suffered actual damages as alleged herein. Plaintiff is entitled to recover, pursuant to Penal Code section 290.46, subdivision (j)(4)(A): "actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)."

ANSWER:

Accurate denies the allegations in Paragraph 46 of the Complaint, and specifically denies that Plaintiff is entitled to any relief whatsoever.

SECOND CAUSE OF ACTION
California Fair Chance Act,
Government Code Section 12952 (Against Defendant Amazon)

COMPLAINT ¶47:

Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

ANSWER:

Accurate incorporates by reference its answers to Paragraphs 1 through 38 as its answer to Paragraph 47 of the Complaint.

COMPLAINT ¶48:

Government Code section 12952 (the California Fair Chance Act) provides, in pertinent part, that an employer that intends to deny an applicant a position of employment solely or in part because of the applicant's conviction history shall make an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position. In making that assessment, the employer must consider: (i) the nature and gravity of the offense or conduct; (ii) the time that has passed since the offense or conduct and completion of the sentence; and (iii) the nature of the job held or sought.

ANSWER:

Paragraph 48 of the Complaint does not include any allegations directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate states that the referenced authority is the best evidence of its contents and denies any allegations in Paragraph 48 of the Complaint that are inconsistent with the cited authority. Accurate denies any remaining allegations in Paragraph 48 of the Complaint directed toward Accurate.

COMPLAINT ¶49:

Amazon is an employer within the meaning of Government Code section 12952. Amazon extended Plaintiff a conditional offer of employment for a Seasonal XL Warehouse Associate position at its Fremont fulfillment center.

ANSWER:

Paragraph 49 of the Complaint does not include any allegations directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 49 of the Complaint.

COMPLAINT ¶50:

Amazon's Simple Hire onboarding process, as experienced by Plaintiff, contains no individualized-assessment step. At no point did Amazon evaluate the nature and gravity of any offense, the time that had elapsed since any offense or completion of sentence, or the nature of the Seasonal XL

Warehouse Associate job in relation to any conviction. The process moved from "Background Check -- Pending" directly to the silent removal of Plaintiffs confirmed training shift, without any intervening assessment, notice, or opportunity to respond.

ANSWER:

Paragraph 50 of the Complaint does not include any allegations directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate denies any allegations in Paragraph 50 of the Complaint directed toward Accurate. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 50 of the Complaint.

COMPLAINT ¶51:

Amazon had actual notice of this statutory obligation. In Lerma, the sole surviving cause of action was a Fair Chance Act claim premised on the identical deficiency -- Amazon's failure to conduct an individualized assessment before denying employment to an applicant based on conviction history. Amazon settled that claim in September 2023. Despite this notice, and despite having litigated and paid to resolve the absence of an individualized-assessment process, Amazon's onboarding system as experienced by Plaintiff in 2026 still contains no such process.

ANSWER:

Paragraph 51 of the Complaint does not include any allegations directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate denies any allegations in Paragraph 51 of the Complaint directed toward Accurate. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 51 of the Complaint.

COMPLAINT ¶52:

Government Code section 12952(c)(2) further requires that before taking adverse action based on conviction history, an employer must notify the applicant in writing of the disqualifying conviction or convictions forming the basis for the preliminary decision, provide a copy of any conviction history

report used, and provide the applicant an opportunity to respond. Amazon has done none of these things with respect to Plaintiff.

ANSWER:

Paragraph 52 of the Complaint does not include any allegations directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate denies any allegations in Paragraph 52 of the Complaint directed toward Accurate. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 52 of the Complaint.

COMPLAINT ¶53:

As a direct and proximate result of Amazon's violation of Government Code section 12952, Plaintiff has suffered and continues to suffer damages as alleged herein, including lost wages, lost employment benefits, lost earning capacity, and emotional distress, humiliation, embarrassment, anxiety, and mental anguish, in amounts to be proven at trial.

ANSWER:

Paragraph 53 of the Complaint does not include any allegations directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate denies any allegations in Paragraph 53 of the Complaint directed toward Accurate. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 53 of the Complaint.

THIRD CAUSE OF ACTION
Fair Credit Reporting Act,
15 U.S.C. Section 1681 et seq.
(Against All Defendants)

COMPLAINT ¶54:

Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

ANSWER:

Accurate incorporates by reference its answers to Paragraphs 1 through 38 of the Complaint as its answer to Paragraph 54 of the Complaint.

COMPLAINT ¶55:

Accurate Background is a "consumer reporting agency" as defined by 15 U.S.C. section 1681a(f). Accurate Background's own communications confirm this status: its July 7, 2026 "Notification of Electronic Communication" to Plaintiff identified itself as "a consumer reporting agency."

ANSWER:

Accurate admits that it provides certain services as a "consumer reporting agency," as that term is defined by the FCRA, and as limited to those services only. In further response, Accurate states that the referenced communications are the best evidence of their contents and denies any allegations in Paragraph 55 of the Complaint that are inconsistent with the referenced communications. Accurate denies any remaining allegations in Paragraph 55 of the Complaint.

COMPLAINT ¶56:

Plaintiff is a "consumer" as defined by 15 U.S.C. section 1681a(c), and the background screening conducted by Accurate Background constitutes a "consumer report" as defined by 15 U.S.C. section 1681a(d), in that it bears on Plaintiffs character, general reputation, personal characteristics, or mode of living and was used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the consumer's eligibility for employment.

ANSWER:

Accurate admits only that Plaintiff is a consumer, as defined in the FCRA. Accurate denies the remaining allegations in Paragraph 56 of the Complaint on the basis that, at the time of this filing, it has not completed a consumer report regarding Plaintiff.

COMPLAINT ¶57:

Amazon is a "user" of consumer reports within the meaning of the FCRA, having procured a consumer report on Plaintiff from Accurate Background for employment purposes.

ANSWER:

Accurate admits only that Amazon requested a consumer report regarding Plaintiff. Accurate denies the remaining allegations in Paragraph 57 of the Complaint on the basis that, at the time of this filing, it has not completed a consumer report regarding Plaintiff.

COMPLAINT ¶58:

The FCRA, at 15 U.S.C. section 1681b(b)(3), requires that in using a consumer report for employment purposes, before taking any adverse action based in whole or in part on the report, the person intending to take such adverse action shall provide to the consumer: (a) a copy of the report; and (b) a description in writing of the rights of the consumer under the FCRA, as prescribed by the Bureau by regulation. These requirements apply independently and are not derivative of any other claim in this Complaint.

ANSWER:

Accurate states that the cited section of the FCRA is the best evidence of its contents and denies those allegations in Paragraph 58 of the Complaint that are inconsistent with the cited section of the FCRA. Accurate denies the remaining allegations in Paragraph 58 of the Complaint.

COMPLAINT ¶59:

Amazon has taken an adverse action against Plaintiff within the meaning of 15 U.S.C. section 1681a(k)(1)(B)(ii), which defines "adverse action" to include a denial of employment or any other decision for employment purposes that adversely affects any current or prospective employee. As alleged in Paragraphs 21 through 25, the specific, dated employment position for which Plaintiff received a conditional offer has been vacated while the background check remains in a perpetual "Pending" status. This constitutes an adverse action in substance, regardless of whether Amazon characterizes it as a formal denial.

ANSWER:

Paragraph 59 of the Complaint consists entirely of legal conclusions and allegations not directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate states that the referenced section of the FCRA is the best evidence of its contents and

denies those allegations in Paragraph 59 of the Complaint that are inconsistent with the referenced section of the FCRA. Accurate denies the remaining allegations in Paragraph 59 of the Complaint.

COMPLAINT ¶60:

Amazon failed to provide Plaintiff with a copy of the consumer report before taking this adverse action, as required by 15 U.S.C. section 1681b(b)(3)(A)(i). Amazon failed to provide Plaintiff with a written description of the consumer's rights under the FCRA before taking this adverse action, as required by 15 U.S.C. section 1681b(b)(3)(A)(ii). Amazon failed to provide Plaintiff with written notice of the adverse action and the information specified in 15 U.S.C. section 1681m(a).

ANSWER:

Paragraph 60 of the Complaint consists entirely of legal conclusions and allegations not directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate states that the referenced section of the FCRA is the best evidence of its contents and denies those allegations in Paragraph 60 of the Complaint that are inconsistent with the referenced section of the FCRA. Accurate denies the remaining allegations in Paragraph 60 of the Complaint.

COMPLAINT ¶61:

Separately, under 15 U.S.C. section 1681b(b)(1), a consumer reporting agency shall not furnish a consumer report for employment purposes with respect to any consumer unless the agency has received certification from the person requesting the report that the user will comply with applicable federal and state law. On information and belief, Accurate Background furnished the consumer report on Plaintiff without ensuring Amazon's compliance with the pre-adverse-action notice requirements of 15 U.S.C. section 1681b(b)(3) and without ensuring Amazon's compliance with applicable state law, including Penal Code section 290.46(j)(2).

ANSWER:

Paragraph 61 of the Complaint consists entirely of legal conclusions and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate states that the referenced section of the FCRA is the best evidence of its contents and denies those allegations in Paragraph 61 of the Complaint that are inconsistent with the referenced section of the FCRA. Accurate denies the

remaining allegations in Paragraph 61 of the Complaint, and specifically denies that it violated the FCRA or any other law.

COMPLAINT ¶62:

Defendants' violations of the FCRA were willful within the meaning of 15 U.S.C. section 1681n. Both Defendants were represented by counsel and litigated these exact FCRA obligations in the Lerma action. Both Defendants had actual notice of the pre-adverse-action requirements under the FCRA. Despite this notice, both Defendants failed to provide Plaintiff with any of the notices or rights required by the FCRA.

ANSWER:

Accurate admits that it is aware of those sections of the FCRA that may apply to it and that it was a defendant in the prior action referenced in Paragraph 62 of the Complaint. Accurate denies the remaining allegations in Paragraph 62 of the Complaint, and specifically denies that it violated the FCRA or any other law.

COMPLAINT ¶63:

As a direct and proximate result of Defendants' willful violations of the FCRA, Plaintiff is entitled to recover statutory damages of not less than $100 and not more than $1,000 per violation pursuant to 15 U.S.C. section 1681n(a)(1)(A), or actual damages pursuant to 15 U.S.C. section 1681n(a)(1)(A), whichever is greater; punitive damages as the court may allow pursuant to 15 U.S.C. section 1681n(a)(2); and reasonable attorney's fees pursuant to 15 U.S.C. section 1681n(a)(3). In the alternative, if the violations are found to be negligent, Plaintiff is entitled to recover actual damages pursuant to 15 U.S.C. section 1681o(a)(1) and reasonable attorney's fees pursuant to 15 U.S.C. section 1681o(a)(2).

ANSWER:

Accurate denies the allegations in Paragraph 63 of the Complaint, and specifically denies that it violated the FCRA or any other law and denies that Plaintiff is entitled to any relief whatsoever.

FOURTH CAUSE OF ACTION
Investigative Consumer Reporting Agencies Act,
Civil Code Section 1786 et seq.
(Primarily Against Defendant Accurate Background)

COMPLAINT ¶64:

Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

ANSWER:

Accurate incorporates by reference its answers to Paragraphs 1 through 38 of the Complaint as its answer to Paragraph 64 of the Complaint.

COMPLAINT ¶65:

Accurate Background is an "investigative consumer reporting agency" within the meaning of Civil Code section 1786.2(d). The background screening conducted by Accurate Background constitutes an "investigative consumer report" within the meaning of Civil Code section 1786.2(c), in that it was a communication bearing on Plaintiffs character, general reputation, personal characteristics, or mode of living that was obtained through personal interviews or investigation.

ANSWER:

Accurate admits that it provides certain services as an "investigative consumer reporting agency," as that term is defined by ICRAA, and as limited to those services only. Accurate denies the remaining allegations in Paragraph 65 of the Complaint and specifically denies that, at this time, it has prepared an investigative consumer report regarding Plaintiff.

COMPLAINT ¶66:

Amazon is a person that has caused an investigative consumer report to be prepared on Plaintiff, within the meaning of Civil Code section 1786.16.

ANSWER:

Accurate admits only that Amazon ordered a background report regarding Plaintiff. Accurate denies the remaining allegations in Paragraph 66 of the Complaint, and specifically denies that, at this time, it has prepared a consumer report or ICRAA-regulated report regarding Plaintiff.

COMPLAINT ¶67:

Civil Code section 1786.16, subdivision (a)(2), requires that whenever an investigative consumer report is sought for employment purposes, the person seeking the report shall, not later than three days after the date on which the report was first requested, notify the consumer in writing that an investigative consumer report will be made regarding the consumer's character, general reputation, personal characteristics, and mode of living, and shall include the name and address of the investigative consumer reporting agency conducting the investigation.

ANSWER:

Paragraph 67 of the Complaint consists entirely of legal conclusions and allegations not directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate states that the referenced section of ICRAA is the best evidence of its contents and denies those allegations in Paragraph 67 of the Complaint that are inconsistent with ICRAA. Accurate denies any remaining allegations in Paragraph 67 of the Complaint.

COMPLAINT ¶68:

Civil Code section 1786.40 provides that an employer shall not take adverse action against a consumer based in whole or in part on information in an investigative consumer report unless the employer provides the consumer with a copy of the report and a summary of the consumer's rights under the ICRAA.

ANSWER:

Paragraph 68 of the Complaint consists entirely of legal conclusions and allegations not directed toward Accurate and, therefore, no answer from Accurate is required. To the extent an answer is required, Accurate states that the referenced section of ICRAA is the best evidence of its contents and denies those allegations in Paragraph 68 of the Complaint that are inconsistent with ICRAA. Accurate denies any remaining allegations in Paragraph 68 of the Complaint.

COMPLAINT ¶69:

Amazon has taken an adverse action against Plaintiff, as described in Paragraphs 21 through 25, based in whole or in part on the investigative consumer report prepared by Accurate Background,

without providing Plaintiff a copy of the report or a summary of Plaintiffs rights under the ICRAA. Accurate Background prepared and furnished the report without ensuring that the user complied with the notification and disclosure requirements of the ICRAA.

ANSWER:

Accurate denies the allegations in Paragraph 69 of the Complaint, and specifically denies that it violated ICRAA or any other law.

COMPLAINT ¶70:

As a direct and proximate result of the violations of the ICRAA, Plaintiff has suffered and continues to suffer actual damages as alleged herein. Plaintiff is entitled to recover actual damages, or statutory damages in the amount of ten thousand dollars ($10,000) if the violation is found to be knowing, whichever is greater, pursuant to Civil Code section 1786.50(a). Plaintiff is further entitled to recover, if the violation is found to be willful, punitive damages, as well as costs and reasonable attorney's fees, as provided by Civil Code section 1786.50(a) and (b).

ANSWER:

Accurate denies the allegations in Paragraph 70 of the Complaint, and specifically denies that it violated ICRAA or any other law and denies that Plaintiff is entitled to any relief whatsoever.

FIFTH CAUSE OF ACTION
Invasion of Privacy California Constitution, Article I, Section 1
(Against All Defendants)

COMPLAINT ¶71:

Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

ANSWER:

Accurate incorporates its answers to Paragraphs 1 through 38 of the Complaint as its answer to Paragraph 71 of the Complaint.

COMPLAINT ¶72:

Article I, Section 1 of the California Constitution provides that all people have the inalienable right to pursue and obtain privacy. This constitutional right of privacy creates a private right of action against private parties whose conduct seriously invades the privacy interests of others.

ANSWER:

Accurate states that the cited authority is the best evidence of its contents and denies any allegations in Paragraph 72 of the Complaint that are inconsistent with the cited authority. Accurate denies the remaining allegations in Paragraph 72 of the Complaint, and specifically denies that it violated or invaded any right of privacy or that Plaintiff has any actionable claim under the Fifth Cause of Action.

COMPLAINT ¶73:

Plaintiff has a legally protected privacy interest in the information maintained on the Sex Offender Registry and the Megan's Law website, at least insofar as that information is used for purposes expressly prohibited by Penal Code section 290.46(j)(2). The Legislature's enactment of specific prohibitions on the use of that information reflects a policy determination that the privacy interest in freedom from employment discrimination based on registry status outweighs any countervailing interest in unrestricted employer access.

ANSWER:

Accurate states that the cited authority is the best evidence of its contents and denies any allegations in Paragraph 73 of the Complaint that are inconsistent with the cited authority. Accurate denies the remaining allegations in Paragraph 73 of the Complaint, and specifically denies that it reported any information regarding Plaintiff's alleged inclusion on any sex offender registry, denies that violated or invaded any right of privacy, and denies that Plaintiff has any actionable claim under the Fifth Cause of Action.

COMPLAINT ¶74:

Plaintiff had a reasonable expectation of privacy in this information, including a reasonable expectation that it would not be gathered, disseminated, and used for the express purpose of denying him employment, in direct contravention of the statutory protections enacted by the Legislature.

ANSWER:

Accurate denies the allegations in Paragraph 74 of the Complaint, and specifically denies that it reported any information regarding Plaintiff's alleged inclusion on any sex offender registry.

COMPLAINT ¶75:

Defendants' conduct constituted a serious invasion of Plaintiffs privacy. In the alternative as alleged in Paragraphs 28 and 29, Defendants obtained, gathered, and/or used Plaintiffs registry status information in connection with an employment decision -- a use expressly prohibited by Penal Code section 290.46(j)(2)(E). The invasion is serious because it resulted in the denial of employment and is of a kind the Legislature specifically sought to prevent.

ANSWER:

Accurate denies the allegations in Paragraph 75 of the Complaint, and specifically denies that it reported any information regarding Plaintiff's alleged inclusion on any sex offender registry.

COMPLAINT ¶76:

As a direct and proximate result of this invasion of privacy, Plaintiff has suffered and continues to suffer damages including emotional distress, humiliation, embarrassment, anxiety, and mental anguish, in amounts to be proven at trial.

ANSWER:

Accurate denies the allegations in Paragraph 76 of the Complaint, and specifically denies that Plaintiff is entitled to any damages whatsoever.

SIXTH CAUSE OF ACTION
Unfair, Unlawful, and Fraudulent Business Practices
Business and Professions Code Section 17200 et seq.
(Against All Defendants)

COMPLAINT ¶77:

Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

ANSWER:

Accurate incorporates its answers to Paragraphs 1 through 38 of the Complaint as its answer to Paragraph 77 of the Complaint.

COMPLAINT ¶78:

Business and Professions Code section 17200 defines unfair competition to include "any unlawful, unfair or fraudulent business act or practice." The UCL is to be construed broadly, and each of its three prongs provides an independent basis for a cause of action.

ANSWER:

Accurate states that the cited authority is the best evidence of its contents and denies any allegations in Paragraph 78 of the Complaint that are inconsistent with the cited authority. Accurate denies the remaining allegations in Paragraph 78 of the Complaint.

COMPLAINT ¶79:

Defendants' conduct constitutes an unlawful business practice under Business and Professions Code section 17200 in that it violates: (a) Penal Code section 290.46, subdivision (j)(2)(E), as alleged in the First Cause of Action; (b) the Fair Credit Reporting Act, 15 U.S.C. section 1681 et seq., as alleged in the Third Cause of Action; and (c) the Investigative Consumer Reporting Agencies Act, Civil Code section 1786 *et seq.*, as alleged in the Fourth Cause of Action. Each of these statutory violations independently constitutes an "unlawful" business practice under the UCL.

ANSWER:

Accurate denies the allegations in Paragraph 79 of the Complaint.

COMPLAINT ¶80:

Independently of the unlawful prong, Defendants' conduct constitutes an "unfair" business practice under Business and Professions Code section 17200. Amazon's hiring process, as documented in Plaintiffs experience, is structured to allow a conditional offer of employment to quietly lapse without ever generating a document that could be construed as a denial or adverse action.

ANSWER:

Accurate denies the allegations in Paragraph 80 of the Complaint.

COMPLAINT ¶81:

Specifically, Amazon's own July 3, 2026 offer email expressly contemplated that if the background check was not completed on time, Plaintiff would be required to "select a new start date,

location or schedule" and that training spots might no longer be available -- framed as a routine scheduling matter ("But don't worry if this happens!") rather than as an adverse action.

This language pre-authorized the exact outcome that subsequently occurred: the confirmed training shift was silently vacated while the background check remained in a perpetual "Pending" status, and no pre-adverse-action notice, adverse-action notice, copy of the report, or opportunity to respond was ever provided.

ANSWER:

Accurate states that the referenced communication is the best evidence of its contents and denies any allegations in Paragraph 81 of the Complaint that are inconsistent with the referenced communication. Accurate denies all remaining allegations in Paragraph 81 that may relate to Accurate. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 81 of the Complaint.

COMPLAINT ¶82:

The unfairness of this practice is that it is designed to achieve the functional equivalent of a denial of employment while avoiding the notice-and-response framework that the FCRA, the ICRAA, and the Fair Chance Act require before an employer may take adverse action based on a consumer report or conviction history. The practice causes substantial injury to applicants (who lose specific, dated employment positions without notice or opportunity to respond), is not outweighed by any countervailing benefit to consumers or competition, and is not one that consumers could reasonably have avoided.

ANSWER:

Accurate denies the allegations in Paragraph 82 of the Complaint.

COMPLAINT ¶83:

As a direct and proximate result of Defendants' unfair and unlawful business practices, Plaintiff has suffered and continues to suffer injury in fact and has lost money or property, including the lost wages and employment benefits from the specific position that was effectively revoked. Plaintiff is

entitled to restitution of any money or property lost as a result of the unfair competition, and to injunctive relief under Business and Professions Code section 17203.

ANSWER:

Accurate denies the allegations in Paragraph 83 of the Complaint, and specifically denies that Plaintiff is entitled to any damages whatsoever.

SEVENTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress
(Against All Defendants)

COMPLAINT ¶84:

Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

ANSWER:

Accurate incorporates its answers to Paragraphs 1 through 38 of the Complaint as its answer to Paragraph 84 of the Complaint.

COMPLAINT ¶85:

Defendants' conduct as alleged herein was extreme and outrageous. Defendants maintained Plaintiffs background check in a perpetual "Pending" status for twenty days -- four times Amazon's own stated five-day norm -- while silently vacating the confirmed training shift and start date, leaving Plaintiff in a state of prolonged uncertainty about his employment status. Defendants used, or allowed to be used, Plaintiffs sex-offender-registry status to deny him employment in direct violation of the statutory protections enacted to prevent precisely this harm. Defendants did so without providing any formal notice, any copy of the consumer report, or any opportunity to dispute or explain the information -- despite both Defendants having been on actual notice of their obligations to do so from the Lerma litigation.

ANSWER:

Accurate denies the allegations in Paragraph 85 of the Complaint.

COMPLAINT ¶86:

Defendants' conduct was intentional and carried out with reckless disregard of the probability that it would cause Plaintiff severe emotional distress. Both Defendants had been through litigation on

these exact issues with sophisticated counsel and knew, or should have known, that maintaining a background check in indefinite "Pending" status while vacating a confirmed start date, without providing any of the notices required by law, would cause severe emotional distress to an applicant.

ANSWER:

Accurate denies the allegations in Paragraph 86 of the Complaint.

COMPLAINT ¶87:

Plaintiff has in fact suffered severe emotional distress as a result of Defendants' conduct, including anxiety, mental anguish, humiliation, embarrassment, loss of sleep, and related symptoms, in amounts to be proven at trial.

ANSWER:

Accurate denies the allegations in Paragraph 87 of the Complaint, and specifically denies that Plaintiff is entitled to any damages whatsoever.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants, and each of them, as follows:

On All Causes of Action:

1. For compensatory damages, including lost wages and employment benefits, according to proof at trial;

2. For general damages for emotional distress, humiliation, embarrassment, anxiety, and mental anguish, according to proof at trial;

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

On the First Cause of Action (Penal Code §290.46(j)):

3. For actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000), pursuant to Penal Code section 290.46, subdivision (j)(4)(A);

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

On the Second Cause of Action (Fair Chance Act, Gov. Code §12952):

4. For damages as provided by law, including any penalties available under Government Code section 12952 and the Fair Employment and Housing Act;

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

On the Third Cause of Action (FCRA, 15 U.S.C. §1681):

5. For statutory damages of not less than $100 and not more than $1,000 per violation, or actual damages, whichever is greater, pursuant to 15 U.S.C. section 1681n(a)(1)(A); punitive damages pursuant to 15 U.S.C. section 1681n(a)(2); and reasonable attorney's fees pursuant to 15 U.S.C. section 1681n(a)(3); or, in the alternative, actual damages and reasonable attorney's fees pursuant to 15 U.S.C. section 1681o;

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

On the Fourth Cause of Action (ICRAA, Civ. Code §1786):

6. For actual damages, or statutory damages in the amount of ten thousand dollars ($10,000) for knowing violations, whichever is greater, and, for willful violations, punitive damages, costs, and reasonable attorney's fees, pursuant to Civil Code section 1786.50;

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

On the Fifth Cause of Action (Invasion of Privacy):

7. For compensatory and general damages for invasion of privacy, according to proof at trial;

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

On the Sixth Cause of Action (Bus. & Prof. Code §17200):

8. For restitution of all money or property lost as a result of the unfair competition, pursuant to Business and Professions Code section 17203;

9. For injunctive relief, including an order enjoining Defendants from using information from the Sex Offender Registry or Megan's Law website for employment purposes in violation of Penal Code section 290.46(j)(2), and enjoining Amazon from taking adverse employment actions based on consumer reports without providing the notices required by the FCRA and ICRAA;

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

On the Seventh Cause of Action (IIED):

10. For compensatory and general damages for severe emotional distress, according to proof at trial;

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

On All Causes of Action:

11. For punitive and exemplary damages where authorized by statute or common law;

12. For attorney's fees and costs of suit as permitted by law;

13. For prejudgment interest as permitted by law;

14. For such other and further relief as this Court deems just and proper.

ANSWER:

Accurate denies that Plaintiff is entitled to any of the relief requested or any relief whatsoever.

DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury on all issues so triable.

ANSWER:

Accurate admits that Plaintiff demands a trial by jury. Accurate denies that Plaintiff is entitled to a trial by jury.

AFFIRMATIVE AND OTHER DEFENSES

Without assuming the burden of proof where it otherwise rests with Plaintiff, Accurate asserts the following affirmative and other defenses to the Complaint, and reserves its right to raise additional defenses as may be discovered or apparent during the course of these proceedings. Accurate reserves its right to move for judgment on the pleadings under Fed. R. Civ. P. 12(c).

FIRST DEFENSE

Plaintiff's claims each fail as a matter of law because Accurate has not prepared a "consumer report" or "investigative consumer report" regarding him.

SECOND DEFENSE

Plaintiff's claims each fail as a matter of law because Accurate has not reported any information to Amazon (or anyone else) regarding Plaintiff's alleged status on any sex offender registry.

THIRD DEFENSE

Plaintiff's claims are barred, in whole or in part, because any alleged damages were not proximately caused by Accurate.

FOURTH DEFENSE

To the extent that Plaintiff failed to mitigate his alleged damages, or failed to comply fully, or at all, with procedures available and/or required under the FCRA or ICRAA to address Plaintiff's concerns and/or otherwise failed to take reasonable steps to avoid harm, Plaintiff's claims for relief are barred or must be reduced accordingly.

FIFTH DEFENSE

Plaintiff is not entitled to punitive damages because Accurate made good faith efforts to comply with the FCRA and all applicable laws, and its interpretation of those obligations was objectively reasonable.

SIXTH DEFENSE

Plaintiff's claims fail to the extent they are premised on constitutionally protected speech.

SEVENTH DEFENSE

Plaintiff's claims for punitive damages violate the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the U.S. Constitution and corresponding Articles of the California Constitution because any punitive damages are disproportionate to any actual damages claimed or available, any award of punitive and/or statutory damages would constitute an unlawful taking, and/or any award of punitive damages is inconsistent with due process.

EIGHTH DEFENSE

Plaintiff's state law claims are barred because they are preempted by 15 U.S.C. § 1681h(e) of the FCRA.

NINTH DEFENSE

Plaintiff's Complaint fails to state a claim upon which relief may be granted.

TENTH DEFENSE

Plaintiff's claims based on any alleged adverse employment action taken against him fail as to Accurate because Accurate is not responsible for any hiring decision taken by the individuals on whom it may conduct background screening services and did not take any such action against Plaintiff.

ELEVENTH DEFENSE

Plaintiff's invasion of privacy claim fails because Accurate did not engage in conduct constituting an invasion of a legally protected privacy interest.

TWELFTH DEFENSE

Plaintiff's UCL claim is barred or limited because Plaintiff is not entitled to restitution or injunctive relief from Accurate.

SEYFARTH SHAW LLP

By: */s/ Jasmine J. Stanzick*
Jasmine J. Stanzick

Attorneys for Defendant
Accurate Background, LLC

September 22, 2026

CERTIFICATE OF SERVICE

I hereby certify that, on September 22, 2026, I served a true and correct copy of the foregoing document on Plaintiff, pro se, via e-mail and through the Court's CM/ECF system, which will send automatic notification of such filing to Plaintiff.

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Plaintiff Pro Se

/s/ Jasmine J. Stanzick
Jasmine J. Stanzick